FORM F

(See Rule 10)

AGREEMENT BETWEEN THE LAND OWNERS AND LAND ACQUISITION OFFICER REGARDING DETERMINATON OF COMPENSATION IN CASE OF PRIVATE NEGOTIATION UNDER INDUSTRIAL PURPOSES ACT 1997

(TAMILNADU Act 10 of 1999)

An agreement made this 12th day of December 2024 between the Governor of Tamil Nadu acting through **Special District Revenue Officer (LA)(F.A.C), Allikulam Oil Refinery Industry Formation, SIPCOT, Thoothukudi and Special District Revenue Officer (L.A), SIPCOT Tirunelveli** (hereinafter called the "Government") on the one part and **Thiru.S.Xavier Rajarathinam, S/o. Susai Rathinam, 15, Rettai Malai Srinivasan Pettai, Tirupattur, Vellore - 635601 (Aadhaar No: 6069 3133 3740) (1),** (hereinafter called the owner(s) / person(s) interested which / expression shall, unless repugnant to the context or meaning thereof, include their successors and assignees) on the other part.

Whereas the right, title, and interest of the owner(s) interested in the following land(s) (hereinafter called the land/lands) is/are as specified below:

(a) Owner being the absolute owner of the property or having an interest therein, capable of leading to ownership, ultimately hereinafter mentioned and hereby conveyed in the following apportionment as determined in the **Proceedings of the Special District Revenue Officer (L.A) (F.A.C), Allikulam Oil Refinery Industry Formation, SIPCOT, Thoothukudi and Special District Revenue Officer (L.A), SIPCOT Tirunelveli No.A5/Unit -5, Block 1 /21 / 2024-4, dated: 08.11.2024:-**

S.No.	Name of the land Owners	Total compensation amount apportioned to the land owners (Rs.)
1.	S.Xavier Rajarathinam, S/o. Susai Rathinam	10,45,000
	Total	10,45,000

(For the detailed apportionment in respect of compensation towards Lands, Trees and Structures in the lands, please refer the award vide proceedings No: **No. A5/Unit -5, Block 1 /21 / 2024-4, dated: 08.11.2024.**

S. Xavier Raja Rathinam

(b) Where the land(s) is/are held by the person interested under the owner(s)/person(s) named hereinafter with respective terms and nature of interest:-

---- Nil ----

AND WHEREAS, the said land(s) specified in the Schedule below have been acquired under the Tamil Nadu Acquisition of Lands for Industrial Purposes Act, 1997 (Tamil Nadu Act 10 of 1999), in respect of which notice, under sub-section (1) of section 3 was published by the District Collector, Thoothukudi in part VI section 1 of the Tamil Nadu Government Gazette extraordinary, Issue No.503 Part IV Section 1, dated: 28.10.2022.

AND WHEREAS, the owner(s)/person(s) interested agrees to the deduction of the total amount deposited in case any or all of the thing(s) attached to the earth or permanently fastened to anything attached to the earth is withdrawn with the prior approval of the Government.

AND, WHEREAS, the owner(s)/person(s) interested further agrees to the deduction of the amount to be mentioned in case they are allowed to harvest the standing crop thereon, by the Government;

Now, therefore, the owner(s)/person(s) interested do hereby agrees with the Government as follows:

1. The Government shall be competent to pay the amount determined as per the terms of this agreement with any further enquiry which is required to be held under the provisions of the Act.

2. If the Government deem it necessary to take immediate possession of the land(s) under acquisition even that there is a standing crop on it, the Government will be entitled to do so provided that compensation for the standing crop is paid.

3. The owner(s)/person(s) interested shall not claim any amount in addition to the amount agreed upon aforesaid as compensation and accept it without any protest.

4. If it hereafter or after the payment of compensation transpires that the owner(s)/person(s) interested is not entitled to the entire amount of compensation paid by the Government in terms of this agreement in respect of the said land(s) as mentioned at the end, the Government is required to pay any compensation to any other person, the owner(s)/person(s)

interested shall, on demand, refund to the Government the entire amount of money received by the owner(s)/person(s) interested or such amount as may be determined by the Government as refundable by the owner(s)/person(s) interested to the Government and shall also indemnify jointly and severally the Government against and claim or compensation or part thereof by any other person and against all proceedings and liabilities of any loss or damage suffered by any of the charges or expenses incurred by the Government by reason of the payment to the owner(s)/person(s) interested shall pay the interest at the rate of 9 (nine) percent on the amount refundable for the first year and at the rate of 15 (fifteen) percent for the subsequent years.

5. If the owner(s)/person(s) interested fails to refund to the Government the amount mentioned in the preceding paragraph, the Government shall have the full right to recover the same as arrears of land revenue or undertake to proceed under any law in force for recovery of such amount.

6. Without prejudice to any other remedies for the enforcement of any refund or indemnity, the Government may recover any sum determined to be due and payable by the owner(s)/person(s) interested to the Government by way of refund or otherwise under these presents as an arrear of land revenue.

7. If any Government dues / shares / premium from their land(s) is/are payable by the owner(s) interested and the lands of any public financial institutions are outstanding against the land(s), the same shall be deducted from the said compensation amount that may be determined under these presents.

8. The determination of higher compensation under this agreement is made through a separate policy of the State Government approved vide G.O.Ms.No.411, Revenue & Disaster Management Department, dated: 06.08.2020 and hence no applications u/s 64 of the RFCTLARR Act, 2013 (or) u/s 8 of the Tamil Nadu Acquisition of Land for Industrial Purposes Act, 1997 shall be entertained to seek enhanced compensation.

THE SCHEDULE

District	Taluk	Village	Survey Number	Extent to be acquired for which this agreement is made (in Hects.,)
Thoothukudi	**Thoothukudi**	**Perurani**	**174/1A**	**0.85.00**

In witness whereof, this **Tmt. R. Revathi, B.Sc(Agri.),M.A., Special District Revenue Officer (L.A.) (F.A.C), Allikulam Oil Refinery Industry Formation, SIPCOT, Thoothukudi and Special District Revenue Officer (L.A.), SIPCOT, Tirunelveli** acting for and on behalf of the Governor of Tamil Nadu

and **S.Xavier Rajarathinam** the land owner(s) who entered into this agreement have set their hands, hereunder.

12/12/2024

(R. Revathi)
Special District Revenue Officer (L.A.) (F.A.C),
Allikulam Oil Refinery Industry Formation,
SIPCOT, Thoothukudi and Special District Revenue
Officer (L.A.), SIPCOT, Tirunelveli.

Name : (L.Paramasivan)
Special Tahsildar (LA),
Allikulam Oil Refinery Industry Formation,
SIPCOT, Unit-5,
Thoothukudi.

Witnesses:

1) P. Xavier Rajarathinam

(Signature of the Land Owners)

1.

Name : (S. Sathya)
Special Revenue Inspector
Allikulam Oil Refinery Industry
Formation, SIPCOT, Unit-5,
Thoothukudi.
(Aadhaar No: 2275 6036 6980)

2.

Name: (Ananchipillai Alias Anitha)
Revenue Inspector
Mudivaithanendal Firka
ThoothukudiTaluk & District
(Aadhaar No: 4444 9360 7701)

3.

Name: (J. Rathinaraj)
Village Administrative Officer
Perurani Village
Thoothukudi Taluk & District
(Aadhaar No: 5102 5886 3924)